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IETF Privacy Statement Consultation

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 JayDaley Final update to change file references 16408dd · 7 years ago		
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README

NOTE: THIS CONSULTATION HAS NOW CLOSED AND THE NEW IETF/IRTF/IAB PRIVACY STATEMENT HAS BEEN FINALISED.

The IETF Administration LLC has reviewed the 2018n IETF Privacy Statement [1] and is replacing it with a new 2019 version [2] as the consultation period has now ended. This new version incorporates additional changes to address the issues raised in the consultation. The main reasons for this are to support the introduction of web analytics, to support the collection of demographic data in surveys and to make the whole statement more legally compliant, easier to read and clearer to understand. This new version contains the following changes, which have been reviewed by our privacy counsel:

1. Significant reordering, moving of text and changing of headings, with minimal change in meaning, in order to make the statement clearer and easier to understand.

2. The scope statement has changed from simply listing the IETF/IRTF/IAB to identifying the specific groups that can legally be considered data controllers in various data protection regimes, namely the LLC, IESG, IAB, IRSG and RFC Editor, and being clear that their activities form a single privacy context. The scope uses "IETF/IRTF/IAB" as a collective term for all these groups, even though that is not the plainest English possible, as that is needed to convey accurate structure in this statement. *"This statement sets out the privacy and data protection policy of the following related organizations and groups: the Internet Engineering Steering Group ("IESG") representing the IETF; the Internet Research Steering Group ("IRSG") representing the IRTF; the Internet Architecture Board ("IAB"); and the common supporting organizations of the IETF Administration LLC ("LLC") and the RFC Editor, which are collectively referred to in this policy as the IETF/IRTF/IAB and individually as a Party and whose collective activities constitute a single privacy context."*
3. The existing version contains a number of references to the Internet Society (ISOC) given the legal structure that existed before the creation of the IETF Administration LLC. Those references have all been removed as data will no longer be shared with ISOC and a statement added for the avoidance of doubt: *"For the avoidance of doubt, this policy does not apply to the Internet Society ("ISOC") and its activities and practices constitute a separate privacy context. ISOC should be regarded as a third-party for the purposes of this policy."*
4. Two new elements have been added to the list of data that may be made public, which reflects existing practice. These are *"metadata related to the time and frequency of your interactions with any IETF system"* and *"message headers"*.
5. Added an additional example of personal data to be clear that email message headers contain a lot of data *"the IP address of a message sender and details of the device or service used to send the message, as found in email headers"*.
6. Added a clear statement that we do not sell data *"We do not sell your Personal Data nor do we monetize it in any way."*
7. Added a new bullet on what data we collect to cover web analytics and a new paragraph that covers what we intend to do with that data. The bullet is *"information provided when you interact with any IETF website"* and the paragraph is *"We track your usage of our websites in order to understand how our websites are used and how we can improve them. We do this using Javascript based tracking code, which collects a limited set of technical data. If Javascript is disabled or not available in your browser then this tracking will not take place and your usage of our websites should not be affected."*
8. Section on Do Not Track (DNT) made clearer as previous version required you to read the specification to understand it *"We do not enable or participate in any third-party tracking of your website activity. As no third-party tracking is enabled on our website, our websites do not alter their behavior according to the value of a browser Do Not Track (DNT) setting."*

9. The section on the use of cookies for online transactions has been made clearer *"When you log into one of our websites or initiate an online transaction through one of our websites then we may use cookies to uniquely identify you during that session, to record your preferences and to simplify the establishment of new sessions. If you disable your web browser's ability to accept cookies you will still be able to browse the site but authenticated and transactional services may not function."*
10. A new section has been added to explain that if we collect demographic information in a survey then that will only be published in an aggregated form that does not allow individual identification. This addition is not needed to enable collection of demographics, we can do that anyway, it is solely to explain what we do if we do collect it. *"We may ask you to provide demographic information (e.g. age, sex, country of residence) in surveys or other information gathering activities. You are not required to provide that information and your disclosure of that information to us is voluntary. We do not disclose the demographic information of individuals. We may publish aggregated information using demographic data as one dimension, in which case we will aggregate at a sufficient level to prevent disaggregation or deanonymization."*
11. A new section has been added to cover a range of processes regarding specific individuals *"Applications for roles, awards/prizes, grants and workshops"*. This is intended to be generic enough to cover new processes of this nature while also being specific enough to be clear. *"The IETF/IRTF/IAB operates a number of processes where individuals may submit Personal Data about themselves or others and where all information is kept confidential, including any reviews, assessments, deliberations, interviews or other discussions, except as specified below. These processes are:*
- *Applications for roles, except the names of applicants*
 - *Feedback on individuals regarding a role application or performance in a role*
 - *Nominations for awards/prizes, except the names of award/prize winners*
 - *Papers submitted for workshops, except the published papers*
 - *Applications for travel grants, except the names of grant recipients."*
12. Updated the section on *"Audio, pictorial and video recordings"* to address the use of red lanyards at IETF meetings: *"For some meetings we provide red lanyards for attendees to wear to indicate that they do not wish to be photographed individually or in small groups. Official IETF/IRTF/IAB photographers comply with this indication and we use reasonable efforts to ensure that all other photographers also comply. Photographs of large groups may contain incidental images of attendees in red lanyards and individuals wearing red lanyards will still be included in official video recordings."*

13. Updated the section on our use of Cloudflare to make it easier for anyone who wishes to read the Cloudflare Privacy Policy to know what data they collect and how it is, when providing this service: *"We use services from Cloudflare to support some of our websites. In Cloudflare terminology that will make anyone who accesses our websites an 'End User' and information on what data Cloudflare collect from End Users and how they use it is explained in their privacy policy. There is a link to the Cloudflare Privacy Policy on the Cloudflare home page."*

[1] <https://github.com/ietf-llc/ietf-privacy-statement-consultation/blob/master/IETF%20Privacy%20Statement%202018.md>

[2] <https://github.com/ietf-llc/ietf-privacy-statement-consultation/blob/master/IETF%20Privacy%20Statement%202018.md>

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